

		Defendant has attached the proposed pleading to the moving papers. However, defendant must electronically file the cross-complaint separately with the clerk's office so that there is a proper record of the pleading. Defendant shall separately file the cross-complaint within three days. Defendant shall give notice of this ruling.
58.	Ray v. General Motors, LLC 2023- 01318172	Plaintiff Adam Ray's motion for attorney fees and costs is GRANTED. (Code Civ. Proc., §§ 1032, subd. (b) [prevailing party entitlement to costs generally], 1033.5, subd. (a)(10)(B) [recoverable costs may include attorney fees pursuant to statute; Civ. Code, § 1794, subd. (d) [prevailing party in Song-Beverly action entitled to reasonable fees/costs].) Plaintiff is awarded attorney fees in the amount of \$13,793.00, which amount the court finds was reasonably and necessarily incurred. The court has reduced the fees sought based on excessive fees claimed for a motion to compel, and based on hours solely related to the fraud claim (which is not within the statutory mandate under which Plaintiff is awarded fees). The court finds that the attorney's hourly rates appear proper. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095 [reasonable hourly rate "is that prevailing in the community for similar work"]; <i>Syers Properties III, Inc. v. Rankin</i> (2014) 226 Cal.App.4th 691, 700 ["determination of the 'market rate' is generally based on the rates prevalent in the community where the court is located"]; <i>Nishiki v. Danko Meredith, APC</i> (2018) 25 Cal.App.5th 883, 899 ["a trial court has its own expertise in the value of legal services performed in a case ... and it may rely on its own familiarity with the local legal market in setting the hourly rate"].) Plaintiff's request for a multiplier is DENIED. This appears to be a routine lemon law case, with no unusual facts or novel legal issues requiring exceptional skill. (<i>Mikhaeilpoor v. BMW of North America, LLC</i> (2020) 48 Cal.App.5th 240, 248, citing <i>Press v. Lucky Stores, Inc.</i> (1983) 34 Cal.3d 311, 322, fn. 12 [multiplier factors].) Plaintiff's request for \$1,844.12 in costs is also GRANTED. Plaintiff's evidentiary objections to Defendant's declaration are OVERRULED. The court orders this settled case dismissed, without prejudice with the court retaining jurisdiction pursuant to CCP § 664.4.